



Australian Government

Department of Foreign Affairs and Trade

AUSTRALIAN HIGH COMMISSION STAFF RESIDENTIAL COMPOUND KONEDOBU, PORT MORESBY PMSB-25007-C71

DESIGN & CONSTRUCT HEAD WORKS CONTRACTOR

REFURBISHMENT PROJECT – INDUSTRY BRIEFING

Prepared by: DFAT/OPO

Date: 22 June 2026

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INDUSTRY BRIEFING AND AGENDA

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|---|-----------------|
| • Welcome and Introductions | DFAT OPO |
| • Probity Briefing | AGS |
| • Request for Tender (RFT)/Solicitation/Bid | DFAT OPO & HWLE |
| • Project Overview | DFAT OPO |
| • Project Priorities | DFAT OPO |
| • Design | DFAT OPO |
| • Programme | DFAT OPO |
| • Site Visit Details | DFAT |
| • Q & A | All |

WELCOME AND INTRODUCTIONS

- Welcome /Industry Briefing Aims
- Project Owner / Client: Dept. Foreign Affairs and Trade (DFAT)
 - Overseas Property Office, Dept. Foreign Affairs and Trade (DFAT)
- Client Consultants (Australia)
 - Probity Lawyers: Australian Government Solicitors
 - Legal/Contract Lawyers: HWLE Lawyers
 - Client Design lead, building services and structural: GHD
 - Client Cost Planner: Turner and Townsend
 - PMCA :TBC

PROBITY BRIEFING – Probity Arrangements

- Australian Government Solicitor (AGS) has been appointed as DFAT's Probity Adviser for DFAT's RFT process for the provision of a Head Works Contractor for the refurbishment of the Australian High Commission Staff Residential Compound (SRC) Konedobu, Port Moresby, Papua New Guinea.
- We are working with DFAT to ensure this procurement is conducted in a way that complies with probity principles and to provide independent oversight of the process.
- Please note this industry briefing is to provide you with background information only.
- Respondents should not rely on a statement made by DFAT in this industry briefing as amending the RFT, unless that is confirmed by DFAT in writing via an addendum.

PROBITY BRIEFING – Probity Arrangements

- The industry briefing and any information provided to you should be treated as confidential information.
- Do not use any information provided to you for any purpose other than planning for, and participating, in this RFT process.
- Respondents should not discuss the RFT with, or seek information regarding the RFT, from any of their business-as-usual DFAT contacts.
- The industry briefing will be recorded. Copies of the industry briefing recording, presentations and responses to questions provided at the industry briefing will be provided to Tenderers through AusTender following the industry briefing.
- Respondents may take written notes, but should not record the industry briefing (e.g. by screen snapshots, AI transcript, video recording etc).

PROBITY BRIEFING – Probity Arrangements

- Please hold your questions until the Q&A session at the end of the industry briefing.
- Please direct your questions to the presenter in a clear way so everyone can hear it.
- Any questions and responses to these during the industry briefing will be made available to all Respondents via an addendum by email.
- If any question cannot be accurately answered today, the question will be taken on notice and, where possible, answers provided via an addendum by email.

PROBITY BRIEFING – Probity Arrangements

- Tenderers must notify the Department as soon as practicable after becoming aware of an actual or potential conflict of interest, or at any time prior to receiving notification of the award of a contract or the termination of the RFT process.
- All inquiries or questions or other communications arising out of the RFT, or the procurement process more generally, should be directed to, and only to the RFT Contact – aopoprojects@dfat.gov.au

Legal Briefing

**REFURBISHMENT OF THE AUSTRALIAN HIGH COMMISSION STAFF
RESIDENTIAL COMPOUND KONEDOBU,
PORT MORESBY, PAPUA NEW GUINEA**

PRESENTED BY

MARKO MISKO (PARTNER)

THOMAS APPLEBY (ASSOCIATE)

HWLE LAWYERS

HWLE
LAWYERS

Overview

- Introductory Remarks
- Key Contract Feature – Due Diligence Phase
- Tender Submission – Due Diligence Phase
- General Comments on Tender Process and Conforming Tender Requirements
- Closing Remarks and Questions

Introductory Remarks

- Overview of key legal issues only
- The materials and all matters discussed are for information purposes only and have no legal precedence
- This legal brief is no substitute for reading the entirety of the tender and contract documents
- Do not rely on your understanding of other tender / contract documents
- DFAT tendering requirements are very particular – it is critical to understand and comply with them

Key Contract Feature – Stage based Due Diligence Phase

- Amended AS4902-2000 Design and Construct
- A new 'Due Diligence Phase' (Clause 6) having regard to the Scope of Requirements (Part 2 of the RFT)
- Purpose of the Due Diligence Phase:
 - Due to the age and disparate condition of the buildings at Konedobu, and the limited access to undertake extensive investigations of individual residences while still occupied, the scope of works includes a component of due diligence to ensure that individual apartment differences are captured typically around existing services.
 - DFAT will provide Design drawings to 90%. – The contractor is responsible to undertake due diligence review to uplift the drawings to 100%/ IFC drawings and opportunities of innovation for the Contractor to incorporate.
- The Contract and Works is divided into Stages 2–8. Each Stage has its own:
 - Date for Delivery Phase Approval; and
 - Date for Practical Completion Date
- The Due Diligence process will be conducted on a **stage-by-stage (sliding) basis, rather than across the entire project at once.**
- For each stage, Due Diligence must commence promptly, and no later than 2 business days after access to the relevant Site is provided.

Due Diligence Phase

- ▼ The Due Diligence Phase for a Stage is the period:
 - Commencing on the Date of Contract; and
 - Ending on the earlier of:
 - the Date of Delivery Phase Approval for the Stage; or
 - the date of a notice under the Contract ending the process.
- ▼ During this phase, the Contractor undertakes Due Diligence of:
 - The Preliminary Design; and
 - The Site.

Contractor's Core Obligation

- The Contractor must, for each Stage, undertake a proactive and comprehensive due diligence of each Preliminary Design and Site by physically inspecting each Site to:
 - Identify and propose all Buildability Input;
 - Identify and propose all Innovation Input;
 - Identify and propose all Risk Reduction Input; and
 - Review, discuss and agree that input with the Superintendent.

Required Outcomes

- The Contractor is required to:
 - Identify Buildability Issues;
 - Identify Design Errors;
 - Review cost and program requirements;
 - Identify material risks; and
 - Prepare the Due Diligence Report.

How the Due Diligence Process Operates

Clause 6 Process - Due Diligence of Preliminary Design and Site for each Stage

Identify:

- Buildability Issues; Innovation opportunities; Project risks

Prepare:

- Buildability Input; Innovation Input; Risk Reduction Input

Update:

- Cost Plans; Programs

Prepare:

- Due Diligence Report

Negotiate adjustments with the Department

Delivery Phase Approval decision

Due Diligence Input

Due Diligence Input consists of:

- **Buildability Input**

- Input provided to address Buildability Issues.

- **Innovation Input**

- Input which a prudent, competent and experienced contractor would provide to maximise Project Objectives.

- **Risk Reduction Input**

- Input which a prudent, competent and experienced contractor would provide to identify and address material risks that may arise during the Delivery Phase.

Buildability Review

Buildability Issues

▮ A Buildability Issue includes:

- Any aspect of the Preliminary Design causing a problem, difficulty or complexity relating to:
 - the means, methods or techniques by which the WUC are performed;
 - the coordination or integration of the WUC at the Site; or
 - the connection or existence of services to or at the Site; and
- Any Design Error.

▮ Contractor Must

- Identify all Buildability Issues
- Provide Buildability Input.
- Advise how Buildability Issues should be resolved.
- Ensure the Due Diligence Report incorporates all required Buildability Input.

Design Verification

Design Verification

- Design Verification means the Due Diligence of the Design Documents undertaken by the Contractor.

Design Error

- A Design Error includes: errors; omissions; ambiguity; inadequacy; inconsistency; incompleteness; or lack of coordination or integration, within the Preliminary Design.
- The Contractor's Due Diligence includes identifying and proposing responses to Design Errors.

Innovation Input

- The Contractor must provide all input which a prudent, competent and experienced contractor would reasonably provide to maximise the Project Objectives.
- Innovation Input includes:
 - Cost planning recommendations; and
 - Programming recommendations.
- The Contractor must review, discuss and agree Innovation Input with the Superintendent.
- **Project Objectives** means the objectives set out in or reasonably to be inferred from the Principal's Project Requirements (Annexure Part F of the Contract);

Risk Reduction Input

- The Contractor must provide all input which a prudent, competent and experienced contractor would reasonably provide to ensure material risks are:
 - Identified; and
 - Addressed during the Due Diligence Phase.
- Examples include:
 - Asbestos; and
 - Other hazardous materials at the Site.
- The Contractor may recommend risk reduction studies and may be required to undertake those studies if directed.

Cost Planning Obligations

■ The Contractor must:

- Review the Cost Plan while undertaking Due Diligence.
- Ensure construction cost accords with the Cost Plan.
- Ensure construction cost does not exceed the Delivery Phase Price for each Stage, except where permitted under the Contract.
- Provide Innovation Input relating to cost outcomes.
- Provide Risk Reduction Input relating to cost risks.
- Update Cost Plans.
- Submit updated Cost Plans to the Superintendent.
- Revise Cost Plans as directed.
- Obtain Superintendent approval.

Programming Obligations

► The Contractor must:

- Review the Program while undertaking Due Diligence.
- Ensure construction duration does not exceed the Date for Practical Completion for each Stage except where permitted under the Contract.
- Ensure compliance with the Master Program.
- Provide Innovation Input relating to programme outcomes.
- Provide Risk Reduction Input relating to programme risks.
- Update Programs.
- Submit updated Programs.
- Revise Programs as directed.
- Obtain Superintendent approval.

Due Diligence Report

- The Contractor must prepare a Due Diligence Report.
- The report must:
 - Be in a form reasonably required by the Superintendent;
 - Contain all Due Diligence Input; and
 - Be approved by the Superintendent.
- Purpose of the Report
- To capture:
 - Buildability Input;
 - Innovation Input; and
 - Risk Reduction Input,

to be implemented in finalising the Preliminary Design at the commencement of the Delivery Phase.
- Submission Process: Draft Due Diligence Report; Revised drafts (if required) and Final draft Due Diligence Report.

Delivery Phase Approval for each Stage

Prior to Delivery Phase Approval for a Stage

▼ The Contractor must:

- Notify proposed adjustments (if any) to:
 - commencement dates;
 - the Preliminary Design;
 - Provisional Allowances;
 - Delivery Phase Price; and
 - Date for Practical Completion.
- Negotiate those matters with the Department.
- Provide costing and supporting information required by the Superintendent.

Delivery Phase Approval for each Stage

► If Delivery Phase Approval is achieved for a Stage

- Department issues a Delivery Phase Approval notice.
- Contract amendments are executed.
- Contractor proceeds with the remainder of the WUC including design, construction, commissioning, completion and handover.

► If Delivery Phase Approval is not achieved for a Stage

- Contractor has no entitlement to undertake the Delivery Phase.
- Contractor is entitled only to the relevant Due Diligence Phase Price payable under the Contract.
- Contractor must hand over Contract Documents and assist with transition.
- Department may re-tender or otherwise procure the Works.

What the RFT is seeking from Tenderer

- ▀ Evaluation Criteria – Approach to Due Diligence.
- ▀ Tenderers must demonstrate:
 - A proactive approach to preparation, submission, review and development of design documentation.
 - Capability to undertake all design-related tasks and activities.
 - Ability to undertake design Due Diligence concurrently with demolition activities.
 - Ability to manage Due Diligence across a rolling staged program of works.

RFT Pricing Requirements for Due Diligence

- Pricing Structure
- Tenderers must provide, for each Stage:
 - Due Diligence Phase Price.
 - Delivery Phase Price.
 - Provisional Allowance (Cost).
- Due Diligence Pricing Breakdown
- Provisional Allowance
 - Available for unexpected and unforeseeable changes arising from the Due Diligence Phase, subject to validation and approval by the Superintendent.

General Comments on Tender Process

- Access to Due Diligence Information and Design (TC 3.3) (Attachment C of the RFT)
- Lodgement and Closing Time / Late Tenders
 - Closing Time is 13 August 2026 at 1700hrs Canberra Local Time (TC 3.2 and 3.6)
- Questions (TC 3.43)
 - The Department will not respond to any request for clarification in relation to the RFT from a Tenderer received after the Deadline for Questions - 6 August 2026 at 1700hrs Canberra Local Time. (TC 3.110)
- Validity Period – 180 Days (TC 3.2.5)
- Essential Requirements (TC 3.10)
- Debrief for unsuccessful applicants – following the award of a Contract (TC 4.12)
- Unintentional Errors of Form (TC 3.13)
- Joint Tenders (TC 3.16)
- Alternative Tenderers (TC 3.18)

Conditions for Participation and Minimum Content and Format Requirements

■ Conditions for Participation (TC 3.11)

- Tenderers must exist as a single legal entity at the Closing Time.
- The Tenderer must hold all Valid and satisfactory Statements of Tax record (STRs) required for its entity type.
- The Tenderer must hold all STRs for the entity type of any first-tier subcontractor that it proposes, as part of its Tender, to engage to deliver goods or services with an estimated value of over \$4 million (GST inclusive).

■ Minimum Content and Format Requirements (TC 3.12)

- Tenders must be written in English and all measurements must be expressed in Australian legal units of measurement;
- Tenders must contain completed and detailed responses to all TRFs 1 to 16 inclusive of all attachments, substantially in the form provided in TRFs 1 to 16
- Tenders must contain a completed and executed Tenderer's deed poll substantially in the form provided with this RFT at TRF 8;
- Tenders must contain a completed Pricing Schedule substantially in the form provided with this RFT, at TRF 11;
- Tenders must include all STRs relevant to the Tenderer's entity type; and
- Tenders must include all STRs for any first-tier subcontractor that it proposes to engage to deliver goods or services.



Closing remarks and questions

NEVER DIE WONDERING... SEEK
CLARIFICATION WHERE REQUIRED

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MANDATORY CONDITION – STATEMENT OF TAX RECORD

- Tenderers should apply for a Statement of Tax Record and should ensure that their subcontractors apply for a Statement of Tax Record within sufficient time to meet these mandatory Conditions for Participation.
- Does your business have an ABN or TFN
- If the Tenderer or their subcontractor is:
 - a trust, a satisfactory Statement of Tax Record must be provided in respect of the trust and trustee;
 - a partnership, a satisfactory Statement of Tax Record must be requested on behalf of the partnership and in respect of each partner that will be directly involved in the delivery of the contract;
 - a joint venture, a satisfactory Statement of Tax Record must be provided in respect of each party to the joint venture; and
 - a subsidiary of a tax consolidated group, or a Multiple Entry Consolidated group, a satisfactory Statement of Tax Record must be provided by the subsidiary and the head company.

MANDATORY CONDITION – STATEMENT OF TAX RECORD

A tenderer that is a new Australian business **or a foreign company**, and who does not have a TFN or ABN, **must** still apply for and submit a Statement of Tax Record for the purpose of complying to these Mandatory Conditions of Participation.

[Statement of tax record | Australian Taxation Office](#)

MANDATORY CONDITIONS

Statement of Tax Records and Tenderers Deed Poll

- RFT Clause 3.15 - Gives the opportunity for Tenderers up to 2 weeks prior to the tender closing, to submit a copy of their Statement of Tax Record (TRF1) and the Tenderers Deed Poll (TRF8) for preliminary view.
- The Department is under no obligation to undertake any reviews of an early submissions and will not be liable for any failure to identify deficiencies.

PROJECT OVERVIEW



PROJECT OVERVIEW



PROJECT OVERVIEW





Left: looking up over the Kone Compound

Below: Looking from Tower D down over Stage 2 & the Kondobu Compound



Dwelling Typologies



House- 3 & 4 bedrooms



Duplex- 4 bedrooms



Apartments- 3 & 4 bedrooms

DESIGN OVERVIEW

- The object of the Project is to upgrade and modernise all the 39 properties and to bring them up to a fit-for-purpose condition and to current Australian standards.
- The intent of the refurbishment is to use durable, climate-appropriate materials that can be maintained locally or within the region.
- The design standardizes layouts, finishes fixtures and plant, to improve maintainability. The design applies a repeatable “kit-of-parts” approach to enable interchangeable components and efficient repairs where-ever possible.
- Compliance with DFAT technical briefs and specifications

SCOPE OF WORKS

Demolition

- Demolition of internal surfaces, including flooring, walls, ceilings, joinery and redundant and old services.
- Demolition and removal of external services including AC units and covers/conduits, Solar Hot water systems etc
- Removal and treatment of mouldy plasterboard walls and ceilings.

New

- New wall linings, and insulation to ceilings and selected walls
- Supply and install new kitchens and appliances, relocate services to suit new layout and appliances.
- Supply and install new robes, walk in robes, while working around existing security hardware
- Refurbishment of wet areas (bathrooms, powder rooms, and laundries), including preparation of floors and walls, waterproofing, relocate services as required, supply and fit new tiles and fitments.

- Preparation of floor for new tiles throughout, noting that each residence has inconsistent floor levels (potentially to each room). Where inconsistent floor levels are present additional floor treatment/ leveling will be required to standardise design and layouts and eliminate trip hazards.
- Replace and relocate extraction/exhaust fans in bathrooms, laundry and kitchen, moving all fans from glazing units to either the walls or ceilings.
- Relocate and replace existing air-conditioning units with new energy-efficient condensate air conditioning systems/reverse cycle air conditioning systems and
- Replace/add light fittings and switch plates, electrical outlets, all existing power and switch cover plates for a consistent installation.
- Electrical re-wiring if there are any non-compliance discovered with the existing installation. Inclusion of surge protection to be incorporate into switch boards.
- replace faceplates and ensure operability of all TV aerial outlets.
- Upgrade phone and data cable connection points, and install a conduit for future capability upgrade from roof to living room.
- Replace solar hot water system
- Replace/ upgrade fire services Including replacement of fire hydrants and blankets.

- New stair handrails and balustrades, and refurbish the existing stair treads
- Safety barrier to the upper level safe haven gate (stairs).
- New paint throughout.
- Rectification of any damage to the external painted brick façade as a result of the works.
- New double glazing and security screens to window openings,
- Curtains, blinds and window furniture.





PROGRAMME OVERVIEW

- The works will be carried as a staged rolling program.
- Due to the requirement to continue to house residents on the site, it is proposed that between 4-6 dwellings are refurbished at any one time to enable a rolling staged program of works across 7 remaining stages.
- Australian High commission Staff and their families will continue to reside onsite for the duration of the Project. For that reason security and safety and safe work practices will be priorities for DFAT.
- Quality to minimise defects to ensure minimal delays to residents during Defect liability period
- The staging plan is indicative and is subject to change to respond to operational requirements. As the project progresses the staging plan may be reviewed and amended to meet operational needs.

PROPOSED STAGING



PROGRAMME OVERVIEW

Milestone	Current Forecast
Approach To Market (RFT)	26 June 2026
RFT Close	13 August 2026
Anticipated Contract Award	18 September 2026
Estimated Practical Completion Final stage	May 2030
Project close out	May 2031

Note: DFAT observed and PNG Public holidays – and a closure of site over the Christmas - New Year period

SITE VISIT

Muster on the verge outside the entrance to Konedobu – check-off names and Vehicle Registrations



Each tenderer will be notified of the time for the Site visit by 12pm Friday 10 July.
If you no longer able to attend the site visit please notify the Tender Administrators

QUESTIONS?

All follow up correspondence to the project inbox
Address question *PMSB-25007-C71-RFI insert subject text*
aopoprojects@dfat.gov.au



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